



**IN THE SUPREME COURT OF INDIA
CIVIL APPELLATE JURISDICTION**

CIVIL APPEAL NO.13079 OF 2026

(@SLP (CIVIL) NO. 33783 OF 2026)

THE STATE OF BIHAR AND ORS. ...APPELLANTS

VERSUS

NANDESHWAR KUMAR ...RESPONDENT

J U D G M E N T

SHEEL NAGU, J.

1. This civil appeal assails the Division Bench order of High Court of Judicature at Patna rendered in LPA No.669 of 2022, arising out of Civil Writ Jurisdiction Case No.14676 of 2022.

1.1 The Division Bench in LPA No.669 of 2022 has reversed the order of the Single Bench rendered in CWJ Case No.14676 of 2022 and directed the respondent herein to be reinstated with all consequential benefits including monetary, to be granted within four months.

2. The factual matrix involved herein are, for convenience, reproduced in tabular illustration chronologically: -

Date	Events
02.01.1995	Respondent is issued Senior Teacher Training Certificate by Dr. B. C. Roy College of Education, Calcutta.
01.07.1995	NCTE Act is made effective.
11.09.2007	The respondent on the strength of the said certificate is appointed as Trained Block Teacher under the Bihar Panchayat Elementary Teacher (Employment and Service Conditions) Rules, 2006.
31.10.2015	The District Programme Officer finds certificate of respondent to be issued by an unrecognized institution.
26.11.2015	Consequently, a show-cause notice is issued to the respondent along with three others to explain as to why services be not terminated.
28.11.2015	Respondent responds by submitting that educational qualification was obtained much before the NCTE Act came into effect and also that the certificate obtained was from Dr. B. C. Roy College of Education, Calcutta which was registered as a society

	under the West Bengal Societies Registration Act, 1961 and also that another candidate by the name Vinod Kumar son of Jageshwar Das., who had obtained certificate from the same college continues to serve as Trained Block Teacher.
02.12.2015	Respondent suffers termination of service owing to the said certificate having been issued by an unrecognized institution.
11.01.2016	On respondent filing CWJ Case No.19322 of 2015 the High Court disposed of the same without entering into merits by relegating the respondent to avail remedy before the District Teacher Appellate Authority.
20.02.2016	The District Teacher Appellate Authority set aside the termination and directed for reinstatement with all consequential benefits.
16.09.2022	State Appellate Authority reversed the finding and order of the District Teacher Appellate Authority by holding thus; (i) In view of the finding rendered in order dated 14.09.2012 in LPA No.244 of 2011 whereby Dr. B. C. Roy College of Education, Calcutta was found neither

	recognized by NCTE nor by Government of Bihar; (ii) Reliance was also placed on an earlier decision rendered on 30.03.2005 in LPA No.235 of 2004 by the Division Bench of Jharkhand High Court which had the occasion to assess the legality and validity of the certificates issued by nine institutes including Dr. B. C. Roy College of Education, Calcutta. However, in the absence of any assistance from the rival parties, the Division Bench in LPA No.235 of 2004, embarked upon a self-assessing exercise to adjudge the legality of certificate issued by these nine institutes. This exercise led to the recording of following observations: - (a) The formats of certificates issued by all the nine institutes including Dr. B. C. Roy College of Education, Calcutta were same. (b) Signatures of Principal of all institutes were same. (c) Signature of examiner in 4-5 institutes were common. (d) The address of some of the institutes were common.
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	(e) Dr. B. C. Roy College of Education, Calcutta was found to exist on paper. Thus, on the basis of above observations, the Division Bench in LPA No.235 of 2004, declined relief of appointment to various appellants (selected candidates) by upholding the decision of the State Government and the Single Bench dated 04.03.2004, challenged before Division Bench.
10.11.2022	Aggrieved, the respondent herein Nandeshwar Kumar, one of the terminated Trained Block Teachers unsuccessfully approached the Single Bench of High Court of Judicature at Patna in CWJC No.14676 of 2022.
2022	Respondent feeling aggrieved preferred LPA No.669 of 2022 assailing the order of Single Bench dated 10.11.2022.
08.07.2025	LPA No.669 of 2022 was allowed reversing the order and findings of Single Bench and directing the respondent to be reinstated with all consequential benefits after finding thus: - “4 Reading of the paragraph Nos.5 and 8 of the aforementioned decision, it is squarely covered in favour of the appellant, the same has not been apprised by the

	learned Single Judge and so also not apprising the fact that appellant was in possession of senior teacher training certificate on 09.01.1995 and NCTE Act, 1993 which is in vogue with effect from 01.07.1995 has no application to the case in hand. Further, in order to ascertain whether Dr. B.C. Roy College of Education, Calcutta, State of West Bengal is recognized or not recognized, <u>to that effect there is no material information and that too from the competent authority of the State of West Bengal. The State has also not ascertained from the State of West Bengal whether Dr. B. C. Roy College of Education, Calcutta, State of West Bengal is a genuine institution and other correspondence so as to contend that the appellant is not in possession of valid teacher training certificate. These are all the issues which have not been adjudicated by the learned Single Judge, therefore, appellant has made out a case so as to interfere with the order of learned Single Judge dated 10.11.2022 passed in CWJC No.14676 and the impugned order dated 16.09.2022 before the learned Single Judge are set aside.”</u>
2025	Aggrieved by the order and judgment in LPA No.669 of 2022, the State of Bihar is before this Court in the instant Civil Appeal.

3. In the backdrop of aforesaid factual matrix, it is palpable that on two occasions when the case came up for assessing the legality and validity of the certificates issued by various institutes including that of Dr. B. C. Roy College

of Education, Calcutta, the High Court indulged in self-assessment owing to want of assistance rendered by either of the parties. In the first instance, the exercise of self-assessment was undertaken while deciding LPA No.235 of 2004 judgment dated 30.03.2005 (vide Annexure P-16, page no.64 of Rejoinder of appellant-State of Bihar). The second time the self-assessment exercise was undertaken by the Court in the impugned order, which is evident from the above extracted para 4 of impugned order.

3.1 From the aforesaid discussion, it is obvious that in the absence of any assistance extended by the rival parties at both the stages of adjudication of LPA No.235 of 2004 and LPA No.244 of 2011, the High Court did not have cogent material to come to a conclusive finding as to whether the certificates issued by Dr. B. C. Roy College of Education, Calcutta were fake or not.

3.2 It is for this reason that the Apex Court in **Seema Kumari & Ors. vs. State of Jharkhand & Ors.**¹, set aside the observations and findings made by Jharkhand High Court in LPA No.235 of 2004, by expressing doubt as

¹ (2006) 12 SCC 215

to the genuineness of the institutions including Dr. B. C. Roy College of Education.

3.3 We were inclined in this judgment to take a different course, but there is an aspect which glares in the face and is palpable enough to dissuade us from doing so. The respondent was appointed on 11.09.2007 as Trained Block Teacher, when he did not have the requisite and statutory qualification in terms of Bihar Panchayat Elementary Teacher (Employment and Service Conditions) Rules, 2006, in particular Rule 8(a), which for ready reference and convenience is reproduced below in toto:-

“Rule – 8. For appointment:

(a) Eligibility

For Block Teacher: -

- (i) Should be a citizen of India and a resident of the state of Bihar.
- (ii) Must have passed Higher Secondary or Intermediate or equivalent examination from a government recognized educational institution.
- (iii) Two-year teacher training, diploma or certificate from a training institute recognized by the National Council for Teacher Education (N.C.T.E.) or Graduate in Elementary Education (B.L. Ed.) Or B. Ed or equivalent qualification.

Minimum two years certificate (C.P.Ed) or equivalent qualification for physical education teacher.

But under this rule, in the first employment, those candidates can also be employed who have passed matriculation or equivalent examination from a government recognized school and obtained two years of teacher training examination / B.Ed./2 years certificate of physical training (CP Ed) from a

recognized training school or recognized college before the National Council for Teacher Education (N.C.T.E.) Act came into force.”

3.4 From the aforesaid statutory 2006 Rules, the respondent at the time of his appointment (i.e. 11.09.2007) was though holding a certificate but the same was not recognized by the National Council for Teacher Education (N.C.T.E.). It is not disputed that the 2006 Rules were invoked when the respondent was appointed. It is also not disputed by the respondent that the certificate issued by Dr. B. C. Roy College of Education, Calcutta (Annexure P-1, at page No.31 of the SLP) was not recognized by N.C.T.E., for the obvious reason that the N.C.T.E. Act, 1995 had not come into being on the date of issuance of the said certificate which was issued as early as in January 1995.

3.5 The N.C.T.E. Act came into force from 01.07.1995 which impelled the State of Bihar to frame the 2006 Rules stipulating that diploma/certificate ought to have been issued by a training institute recognized by N.C.T.E.

3.6 Thus, on the date of appointment as Trained Block Teacher i.e., 11.09.2007, respondent was not eligible as

per 2006 Rules, for not having obtained certificate from an institute recognized by N.C.T.E.

4. A bare perusal of the impugned order of Division Bench reveals that the Division Bench fell into error by holding that N.C.T.E. Act had no application to the case of respondent since the N.C.T.E. norms would only be applicable prospectively w.e.f. 01.07.1995 and not prior thereto.

4.1 This view taken in the impugned order is misplaced, inasmuch as, the eligibility of a candidate for appointment to any public office is seen on the last date of submission of application forms or at best latest by the date of appointment, which clearly stipulated that the same is being offered to respondent in terms of Bihar Panchayat Elementary Teacher (Employment and Service Conditions) Rules, 2006. It goes without saying that as mentioned above, the eligibility of becoming a Trained Block Teacher was diploma/certificate from an institute recognized by N.C.T.E., which the respondent at the relevant point of time did not possess.

4.2 Be that as it may, we are of the considered opinion that the candidature of respondent could not have been considered as eligible under the 2006 Rules at the time of his appointment in 2007. Having held so, we feel that the impugned order of Division Bench rendered in LPA No.669 of 2022 by the High Court of Judicature at Patna deserves to be and is accordingly set aside.

5. Consequently, the present Civil Appeal No.13079 of 2026 filed by the State of Bihar stands allowed and the LPA No.669 of 2022 of respondent stands dismissed.

.....J.
(DIPANKAR DATTA)

.....J.
(SHEEL NAGU)

**NEW DELHI;
OCTOBER 07, 2026**